

MASTER SERVICES AGREEMENT (Sample for AI Testing)

Page 1 - Parties & Definitions

1. Parties

This Agreement is entered into between Acme Manufacturing Pvt. Ltd. ('Client') and TechNova Solutions LLP ('Service Provider').

Additional contractual language: Any amendment must be in writing and signed by authorized representatives. Failure to enforce a provision shall not constitute a waiver of future enforcement.

2. Scope of Services

The Service Provider shall provide software development, cloud hosting, technical support and consulting services.

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3. Definitions

'Confidential Information' means any business, financial, or technical information disclosed by either party.

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Page 2 - Payment Terms

4. Fees

Client shall pay invoices within 15 days.

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5. Late Payment

Late payments incur 2% interest per month.

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6. Taxes

Client is responsible for all applicable taxes except taxes imposed on Service Provider income.

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Page 3 - Confidentiality & IP

7. Confidentiality

Both parties shall maintain confidentiality for five years after termination.

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8. Intellectual Property

Ownership of deliverables transfers only after full payment. Source code remains with the Service Provider unless otherwise agreed.

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9. Open Source

Open-source software may be incorporated under its applicable licenses.

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Page 4 - Term & Termination

10. Initial Term

The agreement remains valid for one year.

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11. Auto Renewal

The agreement automatically renews unless cancelled 90 days before renewal.

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12. Termination

The Client remains liable for accrued fees and non-cancellable third-party expenses.

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Page 5 - Liability

13. Limitation of Liability

Total liability is limited to fees paid during the previous three months.

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14. Exclusion of Damages

Neither party is liable for indirect or consequential damages.

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15. Indemnification

Client indemnifies the Service Provider against third-party claims.

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Page 6 - Security & Privacy

16. Data Protection

Both parties shall comply with applicable privacy laws.

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17. Security

Reasonable security controls shall be maintained.

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18. Data Breach

Security incidents shall be reported within 72 hours.

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Page 7 - Service Levels

19. Availability

Target uptime is 99.5%.

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20. Support

Critical incidents receive a response within two hours.

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21. Credits

Service credits are the Client's sole remedy for SLA failures.

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Page 8 - Compliance

22. Regulatory Compliance

Each party shall comply with applicable laws.

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23. Audit Rights

Client may perform one audit per year.

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24. Records

Records shall be retained for three years.

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Page 9 - Dispute Resolution

25. Governing Law

Governed by the laws of India.

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26. Arbitration

Disputes shall be resolved by arbitration in Ahmedabad.

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27. Force Majeure

Neither party is liable for force majeure events.

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Page 10 - Miscellaneous

28. Assignment

Assignment requires written consent.

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29. Entire Agreement

Supersedes all prior agreements.

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30. Notices

Legal notices must be delivered by registered post or verified email.

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31. Signatures

Agreement becomes effective upon execution.

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